32

1 May 1930, Lahore Ordinance

The Lahore Conspiracy Case has been described as ‘one of the most controversial trials to take place in India under the Raj’.[1] It is not just because Bhagat Singh and his accomplice, Rajguru, of the revolutionary Hindustan Socialist Republican Association (HSRA) had so dramatically on 17 December 1928 shot and killed in cold blood a twenty-one-year old probationary police officer. This was John P. Saunders, coming out of a police station in Lahore, with an unsuspecting air of nonchalance. Political assassinations were not unusual at this time. It was not also because the wrong man had been shot. Nor that the killers cared little of this fact when Saunders had been mistaken for James Scott, the police superintendent who the alleged conspirators in the murder blamed for the callous beating to death of the self-made man Lala Lajpat Rai on 17 November 1928. Nor was it the fact that the latter was the radical firebrand leader who had broken away from Congress and had led a bold protest march against the Simon Commission in Lahore barely three weeks earlier on 30 October 1928 mocking and berating them. The Lahore Conspiracy Case 1931 was controversial because although initially tried under normal criminal law procedures, Bhagat Singh was then tried under a specially created law passed just for him and his two dozen co-accused, specifically for the purpose of hanging him. Some would say (and did say at the time) that he was not being tried under a ‘law’ at all. They would say that he was tried and executed under a regime created well outside the law and deliberately so in a way that he and his comrades would remain well beyond the reach of the law. They would point to the irony that both he and his co-accused were already being tried in regular committal proceedings before a regular